

Gaurav Gupta v. State of U.P.

Allahabad High Court · Division Bench · 20 August 2014 · WRIT - C No. 41709 of 2014 · **Writ disposed; petitioner relegated to a Clause 6.5(b) complaint before the Executive Engineer; recovery stayed pending that decision and to lapse if no complaint was filed within ten days.**

HEADNOTE

On a challenge to electricity bills being recovered as arrears of land revenue, the Court applied Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 and disposed of the writ by relegating the consumer to a complaint before the Executive Engineer, staying recovery until a reasoned speaking order, with the stay to lapse if no complaint was filed within ten days.

FACTUAL SUMMARY

Gaurav Gupta approached the Allahabad High Court against recovery of electricity dues as arrears of land revenue. Counsel for Madhyanchal Vidyut Vitran Nigam Ltd. stated on instructions that the controversy was a dispute over bills so raised. The Corporation's counsel submitted that if the petitioner filed an objection before the Executive Engineer at Shahjahanpur, it would be considered and decided under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

billing-objection

HOLDING

Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 requires the competent authority to decide a consumer's complaint disputing the accuracy of a bill. A writ against recovery of such bills as arrears of land revenue may be disposed of by relegating the consumer to that complaint before the Executive Engineer, keeping recovery in abeyance until a reasoned speaking order, and providing that the stay lapses if the complaint is not filed within the time fixed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLS WERE EXCESS OR WRONG, AND WHETHER RECOVERY AS ARREARS OF LAND REVENUE WAS JUSTIFIED

Left to the Executive Engineer on a Clause 6.5(b) complaint ¶ 1